



Appeal Decision

Site visit made on 4 August 2026

by Richard Gilbert BA (Hons) MSc MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6011648

13 Temperance Hill, Woolley Moor DE55 6FJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Kenneth Riley against the decision of North East Derbyshire District Council.
 - The application reference is 26/00145/FLH.
 - The development proposed is a rear first floor extension.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The site address details of the application form omitted the post code for the appeal property. The post code in the banner heading above is taken from the decision notice.
3. During the course of the appeal a new National Planning Policy Framework (the Framework) was published on the 17 August 2026. The amendments to the Framework have incurred a change in national planning policy which are material considerations to this appeal proposal. I have provided both parties with an opportunity to comment on the Framework with relevance to their case.

Main Issue

4. The main issue is the effect of the proposed development on the character and appearance of the appeal property and surrounding area, having regard to its location in the countryside.

Reasons

5. The appeal property is a two-storey semi-detached dwelling faced in stone and positioned at the end of a row of similar pitched roof houses. It possesses a single storey rear extension with a shallow mono-pitch roof. The gable of the appeal property faces toward an open, grassed area of land that exposes its side elevation to public vantage points along a stretch of Temperance Hill. Neighbouring dwellings in the row comprise the attached neighbour and a further terrace of four houses. The appeal property and its neighbours have a rural character and appearance resulting from their modest size, humble form and ample gardens set within the surrounding countryside.
6. The proposed development includes the erection of a first-floor pitched roof extension forming a rear gable above the existing rear extension. Policy LC5 of the North East Derbyshire Local Plan (2021) (NEDLP) permits extensions to dwellings

provided that the proposal respects the scale, proportions, materials and overall design and character of the existing property. The appeal site is also situated in the countryside, outside of the settlement development limits. Therefore, Policy LC5 also requires proposals for residential extensions outside of development limits to be assessed as a new dwelling where they, either individually or cumulatively, involve a significant change in the scale and character of the original dwelling.

7. The depth of the existing extension is significant and, as the proposal would match its projection, a large new area of blank wall would be created at height behind the dwelling preventing the proposal from appearing subsidiary when approaching from Temperance Hill. When considered alongside existing extensions, the proposal would cumulatively increase the original volume of the host dwelling by approximately 70.6%. Not only would this additional mass be disproportionate to the size of the original dwelling, it would be unsympathetic to its simple form and modest scale, and therefore detrimental to its character and appearance.
8. The Council have identified the proposed extension as amounting to a significant change in scale and character of the original dwelling and, in accordance with Policy LC5, the proposal was assessed as if it were a new dwelling. Policy SS9(1) of the NEDLP sets out the categories where proposals in countryside locations outside of settlement development limits will be approved. This includes, amongst other categories, a replacement building for the same use that is not significantly larger than the building it replaces. As the development plan requires the proposal to be assessed as a new dwelling, and it would be significantly larger in scale and character than the existing dwelling, it would not fall within that category. Furthermore, when considered in the alternative as a residential extension, there are no categories within SS9(1) that the proposal would otherwise fall into. Consequently, the proposal is not capable of satisfying SS9(1).
9. As regards the extensions present at neighbouring dwellings, there is no rear extension at 11 Temperance Hill, and the rear extensions to 10 and 12 Temperance Hill are restricted to a single storey. These examples are therefore not comparable to the appeal proposal.
10. There are two, two-storey rear extensions present at 8 and 9 Temperance Hill (Nos. 8 and 9) that form an end-terrace and mid-terrace, respectively. Being a mid-terrace, the extension to No.9 sits within the profile of the extension next door at No.8 and is not visible within the street scene. The extension to No.8, although two-storey, consists of a first floor dormer set within the side of a roof slope. With the eaves positioned at a low level, that extension possesses far less bulk and dominance than the proposal before me. In this context, and mindful of the lack of information relating to how neighbouring extensions came into being, I attribute limited weight to any comparison with them, and they do not persuade me that the appeal proposal is acceptable.
11. For the reasons set out above, the proposed development would have a substantially harmful effect on the character and appearance of the appeal property and surrounding area, having regard to its location in the countryside. Conflict therefore arises with Policies SS9, LC5, SDC3 and SDC12 of the NEDLP. These policies seek development in countryside locations that respects the scale, proportions, materials and overall design and character of the existing property, and make a positive contribution to the quality of the local environment whilst not

causing significant harm to the character, quality distinctiveness or sensitivity of the landscape.

Other Matters

12. I further note the appellant's contention in respect of fairness. There is no procedural or substantive evidence before me to indicate that the Council assessed the proposal in an unreasonable or unfair manner. Nonetheless, my assessment is based on the plans, evidence and merits of the case before me and I have determined the appeal accordingly.

Planning Balance

13. The proposal would have a harmful effect on the character and appearance of the appeal property and surrounding area and would therefore conflict with the development plan, taken as a whole.
14. The appeal site is situated outside of a settlement where only certain forms of development should be approved as specified by Policy S5 of the Framework. These specific forms of development should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies of this Framework.
15. Whilst the proposal is required to be assessed as a new dwelling by the development plan, this does not apply to the Framework. As such, Policy S5(1)(c) specifies that the reuse, extension, alteration or replacement of an existing building can be approved provided that the existing building is of permanent and substantial construction, is lawful in planning terms and any extension or alteration would not result in a disproportionate increase in size to the existing building as of 17 August 2026.
16. The proposal is constructed of masonry and is therefore of permanent and substantial construction and there is no evidence before me to suggest that the dwelling is not otherwise lawfully used as such. Although the proposed extension would increase the overall additions to the property to approximately 70.6% of its original volume, independently it represents an increase of approximately 22.4% as of 17 August 2026. This is not considered to be a disproportionate increase when existing extensions are excluded. Consequently, the proposal is a form of development that should be approved, unless the benefits of doing so are substantially outweighed by any adverse effects assessed against the national decision-making policies of the Framework. This material consideration limits the weight to be attached to the proposal's conflict with Policy SS9 of the NEDLP.
17. The proposal would provide economic and social benefits through employment related to its construction, and through the provision of additional living space for the appellant and their family, respectively. Nevertheless, the construction period would be temporary, thereby restricting long term employment. Similarly, the additional living space would be confined to a private use. As such, the identified benefits attract limited weight in the balancing exercise.
18. Policy DP3(3) of the Framework states that development should be refused if, without clear justification, it conflicts with Policy DP3(1), which states that development proposals should respond to their context (the history, character and features of their site and its setting), so that they integrate with and enhance their

surroundings. Whilst Policy SS9 of the NEDLP has diminished weight due to Policy S5(1)(c) of the Framework, the design of the proposal has been assessed as contrary to Policy LC5 of the NEDLP by reason of character and appearance. This conflict amounts to a substantial adverse effect in the planning balance in accordance with Policies DP3(3) and S5(2) of the Framework.

19. When weighed against one another, the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies of the Framework.

Conclusion

20. Overall, material considerations in favour of approval are not of sufficient weight to suggest the decision should be made other than in accordance with the development plan. For the reasons given, and having regard to all other matters raised, the appeal should be dismissed.

Richard Gilbert

INSPECTOR